

Discussion

Defendants assert Plaintiff Rountree's disclosure of additional alleged injuries and medical providers immediately before his noticed deposition on January 26, 2026, as well as his non-appearance at a scheduled neurological medical examination on February 20, 2026, requires a continuance, because there is insufficient time to conduct required discovery prior to the current discovery cutoff of March 22, 2026. The Court agrees. The Court finds that: there is good cause to reopen discovery under Code of Civil Procedure section 2024.050(b); and the Rule 3.1332 factors support the requested trial continuance (namely: (c)(6) and (b)(1), (2), (3), (4), (5) and (10)). Trial is continued to November 3, 2026, at 9:00 a.m., mandatory settlement conference is continued to October 12, 2026, at 10:00 a.m., pretrial conference is continued to September 18, 2026, at 11:00 a.m. All discovery and related dates will be based on the new trial date.

5. CU0001845 Mark Gold, et al. vs. Robert A. Tonnies, et al.

Defendants' counsel's unopposed motion to be relieved as counsel is granted. Counsel is ordered to prepare and submit a revised order (MC-053) that reflects the continued case-management conference date of April 6, 2026. The order relieving counsel will be deemed effective only when Counsel files a proof of service with the Court of a copy of the signed order on the client. *See* California Rules of Court, Rule 3.1362(e). Counsel shall submit the revised order for the Court's signature within two (2) court days of the Court's order becoming final. No appearances are required.

6. CU0002095 Julie Childs v. Michael Brewer

Respondent's November 12, 2025, request for attorney fees will be heard by Judge S. Thomsen on April 13, 2026, at 09:00, in Department 4.

7. CU0002489 Matthew William Vickers vs. Ethan Oliver Ralph

Defendant Ralph's special motion to strike under Code of Civil Procedure section 425.16 (Anti-SLAPP Motion) is granted in part as described herein. His request for fees and costs is denied.

Oversized Brief

Subject to exceptions which do not apply here, under California Rules of Court, rule 3.1113(d), "no opening ... memorandum may exceed 15 pages." Cal. Rules of Court, rule 3.1113(d). The memorandum submitted in support of the present motion is 24 pages. The Court's records reflect that plaintiff did not file an appropriate application with the Court requesting permission to file a longer memorandum. *See* Cal. Rules of Court, rule 3.1113(e). That stated, the Court, in the exercise of its discretion, will consider the moving papers in their entirety. Defendant is admonished to comply with the California Code of Civil Procedure and the California Rules of Court.

Request for Judicial Notice

At bar, Defendant seeks judicial notice of a complaint filed in CU0001860, Ralph Decl. ¶ 48 Exhibit 10, but fails to make such request in a separate document as required. *See* Cal. Rules of

Court, Rule 3.1113(l) (“Any request for judicial notice must be made in a separate document listing the specific items for which notice is requested and must comply with rule 3.1306(c).”). Plaintiff does not object. The Court grants the request. Judicial notice will be limited to the fact the document was filed, but not of the truth of its contents. See *Espinoza v. Calva* (2008) 169 Cal.App.4th 1393, 1396. Defendant is again admonished to comply with all applicable procedural law.

Legal Standard for Anti-SLAPP Motion

“Code of Civil Procedure section 425.16 sets out a procedure for striking complaints in harassing lawsuits that are commonly known as SLAPP suits ... which are brought to challenge the exercise of constitutionally protected free speech rights.” *Kibler v. Northern Inyo County Local Hospital Dist.* (2006) 39 Cal.4th 192, 196, 46 Cal.Rptr.3d 41, 138 P.3d 193. A cause of action arising from a person's act in furtherance of the “right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability” that the claim will prevail. Code Civ. Proc., § 425.16, subd. (b)(1). “The anti-SLAPP statute does not insulate defendants from *any* liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, *meritless* claims arising from protected activity. Resolution of an anti-SLAPP motion involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. [Citation.] If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success. We have described this second step as a ‘summary-judgment-like procedure.’ [Citation.] The court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a *prima facie* factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff's evidence as true, and evaluates the defendant's showing only to determine if it defeats the plaintiff's claim as a matter of law. [Citation.] ‘[C]laims with the requisite minimal merit may proceed.’ ” *Baral, supra*, 1 Cal.5th at pp. 384-385, 205 Cal.Rptr.3d 475, 376 P.3d 604, fn. omitted.) ... As to the second step, a plaintiff seeking to demonstrate the merit of the claim “may not rely solely on its complaint, even if verified; instead, its proof must be made upon competent admissible evidence.” *San Diegans for Open Government v. San Diego State University Research Foundation* (2017) 13 Cal.App.5th 76, 95, 218 Cal.Rptr.3d 160; see *Grenier v. Taylor* (2015) 234 Cal.App.4th 471, 480, 183 Cal.Rptr.3d 867; *City of Costa Mesa v. D'Alessio Investments, LLC* (2013) 214 Cal.App.4th 358, 376, 154 Cal.Rptr.3d 698; *Paiva v. Nichols* (2008) 168 Cal.App.4th 1007, 1017, 85 Cal.Rptr.3d 838.

Monster Energy Co. v. Schechter (2019) 7 Cal.5th 781, 788 (parentheses omitted).

In addition:

Analysis of an anti-SLAPP motion is not confined to evaluating whether an entire cause of action, as pleaded by the plaintiff, arises from protected activity or has merit. Instead,

courts should analyze each claim for relief — each act or set of acts supplying a basis for relief, of which there may be several in a single pleaded cause of action — to determine whether the acts are protected and, if so, whether the claim they give rise to has the requisite degree of merit to survive the motion.

Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1010.

Step One: Conduct in Furtherance of Right to Free Speech

Defendant argues, among other things, that “allegations by Plaintiff’s ex-wife that Plaintiff raped her are under consideration by the Nevada County District Attorney and thus constitute constitutionally protected free speech in connection with a public issue.” Mot. 12:11-13. The Court agrees based on the record presented.

“[Code of Civil Procedure] [s]ection 425.16, subdivision (b)(1) expressly makes subject to a special motion to strike ‘[a] cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States or California Constitution in connection with a public issue....’ ” *Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1113. “For the statute’s purposes, an ‘act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue’ includes: ... (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law....” *Ibid.*, citing 425.16(e)(2). “Thus, plainly read, section 425.16 encompasses any cause of action against a person arising from any statement or writing made ... in connection with an issue under consideration or review by, an official proceeding or body.” *Ibid.* Statements made in connection with an official proceeding need not also be shown to pertain to a matter of public interest. *Id.* at 1113-1114. Moreover, statements made in connection with an issue under consideration by a district attorney can be within the ambit of the anti-SLAPP statute. *Schaffer v. City and County of San Francisco* (2008) 168 Cal.App.4th 992, 1004 (“by demonstrating that Fewer’s and Haggett’s alleged statements were in connection with an issue under consideration by the district attorney, respondents made a prima facie showing that the acts underlying Schaffer’s causes of action are within the ambit of the anti-SLAPP statute.”). Finally, a court may properly look to the moving defendant’s declaration to determine whether they engaged in protected or unprotected activity for purposes of the first step assessment. *Salma v. Capon* (2008) 161 Cal.App.4th 1275, 1286, citing *Brill Media Co., LLC v. TCW Group, Inc.* (2005) 132 Cal.App.4th 324, 330.

At bar, Defendant declares he became aware in early 2025 that the ex-wife of Plaintiff allegedly accused Plaintiff of rape and those accusations resulted in “an active investigation on the part of the Nevada County Sheriff’s Department.” The ex-wife confirmed to Defendant that the allegations of rape were true on a date uncertain thereafter. Defendant then made a February 26, 2025, public records request for the November 7, 2024 report filed by the ex-wife reporting that she was the victim of sexual assault by Plaintiff. The Sheriff’s Office indicated that the requested report was “in the hands of” the Nevada County District Attorney.” See Ralph Decl. ¶¶ 23-26, 29, 32-34, 46 and Exhibit 8, 48 and Exhibit 10. In light of this, the Court is satisfied that the November 19 and November 20, 2025 alleged defamatory statements by Defendant, see

Complaint ¶¶ 8, 9, constitute oral statements made in connection with an issue now under consideration or review by the Nevada County District Attorney, an official proceeding or body. Defendant has made a sufficient prima facie showing that the challenged claim arises from activity protected by Code of Civil Procedure section 425.16.

Step Two: Probability of Success

Defendant contends that Plaintiff cannot establish a probability of success as to his claims. Mot. 15:3-4. In particular, he argues that Plaintiff “cannot meet his burden of establishing by ‘clear and convincing evidence that the allegedly defamatory statements were made with knowledge of their falsity or with reckless disregard of their truth or falsity’ because he has no evidence that ‘defendant [Ralph] in fact entertained serious doubts as to the truth of his publication.’ ” Mot. 20:19-24. The Court agrees in limited part only.

The elements of a claim for defamation depend on whether plaintiff is a public figure or a private figure and whether it concerns a public or private matter. For a private figure, the elements for a defamation cause of action in general are “(1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage.” See *John Doe 2 v. Superior Court* (2016) 1 Cal.App.5th 1300, 1312. “If the person defamed is a public figure, he cannot recover unless he proves, by clear and convincing evidence [citation], that the libelous statement was made with “ ‘actual malice’—that is, with knowledge that it was false or with reckless disregard of whether it was false or not.” ” *Reader's Digest Assn. v. Superior Court* (1984) 37 Cal.3d 244, 256; California Civil Jury Instructions (CACI) 1700. Similarly, if the defamation involves an issue of public concern, proof of actual malice is necessary to recover presumed or punitive damages even if the plaintiff is not a public figure. *Brown v. Kelly Broadcasting Co.* (1989) 48 Cal.3d 711, 747; CACI 1702. Finally, if the defamation relates to a private figure, in connection with a private matter, a plaintiff must prove negligence to recover any damages. *Brown*, 48 Cal.3d at 747; *Carney v. Santa Cruz Women Against Rape* (1990) 221 Cal.App.3d 1009, 1016, CACI 1704.

At bar, the Court has carefully considered the declaration of Plaintiff submitted, in part, as evidence in connection with his claims. The Court addresses the defamation claim premised on the allegation of rape. The Court assumes, without deciding, that the defamation involved an issue of public concern or a limited public figure. Plaintiff has presented evidence that Defendant made *per se* defamatory statements to third parties about Plaintiff committing rape, a crime, and that the statements were false. Plaintiff has presented evidence that the very complaint utilized by Defendant to obtain the original information as to the alleged rape, included Plaintiff’s denials of the same. Moreover, Plaintiff has declared that the rape allegations are false. Vickers Decl. ¶¶ 3-4, 8-12. This evidence and the inferences therefrom constitute sufficient that Defendant repeated the rape allegations with knowledge that it was false or with reckless disregard of whether it was false. Plaintiff has met his *prima facie* factual showing sufficient to sustain a judgment as to defamation related to the allegation of rape.¹

¹ The outcome would be the same if this was a private figure/matter defamation matter. Sufficient evidence has been presented to establish that Defendant failed to use reasonable care to determine the truth or falsity of the rape statements. See CACI 1704.

The analysis is different for the claim of defamation predicated on “suggestions that Plaintiff Vickers was actively attempting to kill his ex-wife. See Complaint ¶ 9. Plaintiff has made no *prima facie* factual showing sufficient to sustain a favorable judgment as to these statements for either defamation *per se* or *per quod*. See, e.g., CACI 1700-1705.

The same can be said of Defendant’s negligence claim. See Complaint ¶¶ 8, 9, 16, 17. Assuming *arguendo* that Plaintiff has properly alleged a claim of negligence, Plaintiff has made no *prima facie* factual showing sufficient to sustain a favorable judgment against Defendant for negligently making the statements as to Plaintiff raping or attempting to kill his ex-wife. See *Woolard v. Regent Real Estate Services, Inc.* (2024) 107 Cal.App.5th 783, 791 (“The elements of a cause of action for negligence are duty, breach, causation, and damages.”), quoting *Melton v. Boustred* (2010) 183 Cal.App.4th 521, 529; CACI 400. Specifically, there has been no evidentiary showing by Plaintiff that Defendant’s negligence was a substantial factor in causing him harm or any damages related thereto.

Fees

Defendant argues he is entitled to “reasonable fees and costs or, in the alternative, monetary sanctions, under the Anti-SLAPP statute.” Mot. 30:1-3. Not so.

Code of Civil Procedure section 425.16 (c) (1) provides, in relevant part: “a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs.” “[The] decisional authority and the plain language of section 425.16, subdivision (c) supports the conclusion that the commonly understood definition of attorney fees ... applies with equal force to section 425.16 and a prevailing defendant is entitled to recover attorney fees *if represented by counsel.*” *Witte v. Kaufman* (2006) 141 Cal.App.4th 1201, 1208 (italics added), quoting *Ramona Unified School Dist. v. Tsiknas* (2005) 135 Cal.App.4th 510, 524. In any event, it cannot be said that Defendant prevailed. Each side prevailed in part.

Defendant’s motion is granted in part and denied in part as specified.

8. CU0002494 Live Oak Banking Company, vs. Miller Real Estate Investments LLC, et al.

Plaintiff’s application for an order extending time to serve Defendants and granting service of process on secretary of state as to Miller Real Estate Investments LLC, and Joseph A. Miller, DMD, Inc., is granted.

The Secretary of State may be served, rather than the designated agent of a domestic corporation, under any of the following circumstances: (1) if an agent designated for the purpose of service of process has resigned and has not been replaced; (2) if the designated agent cannot with reasonable diligence be found at the address designated for personal delivery of process; or (3) if no agent has been designated. Corp. Code § 1702.

Under any of these circumstances, it must be shown by affidavit to the satisfaction of the court that process against the domestic corporation cannot be served with reasonable diligence upon the designated agent by hand, by leaving copies in the office of the person to be served, or by